

HOUSE No. 1380

The Commonwealth of Massachusetts

PRESENTED BY:

John J. Lawn, Jr. and Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to healthcare industry recruitment and education for the 21st Century.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>1/17/2025</i>
<i>Mindy Domb</i>	<i>3rd Hampshire</i>	<i>1/22/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/26/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>4/1/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/11/2025</i>

HOUSE No. 1380

By Representatives Lawn of Watertown and Decker of Cambridge, a petition (accompanied by bill, House, No. 1380) of John J. Lawn, Jr., and Mindy Domb for legislation to establish a healthcare industry recruitment and education advisory council. Health Care Financing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1220 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to healthcare industry recruitment and education for the 21st Century.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 16FF the following section:-

3 Section 16GG. (a) There shall be a healthcare industry recruitment and education
4 advisory council within, but not subject to control of, the executive office of health and human
5 services. The council shall advise the governor and the general court, and shall assist in
6 informing the work of the secretary of education, the secretary of health and human services, the
7 secretary of labor and workforce development and the secretary of housing and economic
8 development on issues relating to the Healthcare Industry Recruitment and Education Fund,
9 hereinafter referred to as the HIRE Fund, pursuant to section 2JJJJJ of chapter 29.

(b) The council shall: (i) confer with participants and parties involved with primary and behavioral healthcare planning and programming; (ii) assess how to increase student interest in, and preparation for, careers in primary and behavioral healthcare; and (iii) advise on the creation, implementation of and updates to initiatives that contain clear goals and objectives to guide future efforts of the HIRE Fund, including the creation of benchmarks for improvements.

(c) The council shall consist of 23 members. The members of the council shall be appointed by the governor and shall serve without compensation. Council members shall be persons with demonstrated interest, experience and expertise in primary and behavioral healthcare and shall include: the secretary of health and human services, who shall serve as chair out the council and the executive committee, or a designee; the commissioner of the department of mental health, or a designee; the director of health equity, or a designee; the president of the University of Massachusetts Medical School, or a designee; the president of the Massachusetts College of Pharmacy & Health Sciences, or a designee; the dean of Tufts University's School of Dental Medicine, or a designee; a president of a private university or a designee; a president of a public community college or a designee; the president of the Provider's Council, or a designee; a member of the Conference of Boston Teaching Hospitals; a member of the Massachusetts Association of Schools Committees; a member of the Massachusetts Association of Regional Schools; a member of the Massachusetts Association of School Superintendents; a member of the National Association for the Advancement of Colored People; a member of the Union of Minority Neighborhoods; a member of the Massachusetts Cultural Council; a member of the Massachusetts Commission on the Status of Women; a member of the National Association of Social Workers; a member of Local 509, S.E.I.U.; a member of Local 1199 S.E.I.U.; a mental

health provider; a representative of persons with disabilities and a representative of the elder community

(d) The council shall establish an executive committee which shall consist of 9 members who shall provide guidance on the recommendations of the council and plan future meetings and initiatives. The chair shall determine the membership of the executive committee and shall designate subcommittees to focus on particular challenges facing primary and behavioral healthcare education and the primary and behavioral healthcare workforce. The council shall meet at least bimonthly, and at other times as determined by its rules. The executive committee shall meet at such times and places as determined by the chair. The council shall annually submit its findings and recommendations, together with drafts of legislation or regulations necessary to carry those recommendations into effect no later than March 31 by filing the same with the governor and the clerks of the senate and house of representatives.

SECTION 2. Chapter 29 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after section 2IIIIII the following section:-

Section 2JJJJJ. (a) There is hereby established and set up on the books of the commonwealth a separate fund to be known as the Healthcare Industry Recruitment and Education Fund, hereinafter referred to as the HIRE Fund, to which shall be credited all revenue received from the excise imposed by chapters 63E and 63F; any revenue from appropriations or other monies authorized by the general court and specifically designated to be credited to the fund; any funds from public and private sources such as gifts, grants and donations to further community-based prevention activities; any interest earned on such revenues; and any funds provided from other sources. The secretary of health and human services, as trustee, shall

administer the fund, in consultation with the HIRE advisory council established in section 16GG of chapter 6A, The secretary shall, without further appropriation, make expenditures from the HIRE Fund consistent with this section, provided, that the secretary shall annually award not less than 30 per cent of the expenditures from the fund through a statewide competitive grant process to eligible institutions of higher education; kindergarten to grade 12, inclusive, and vocational education institutions; private for-profit and nonprofit organizations providing education and workforce training, 1-stop career centers; local workforce development entities; and any partnership or collaboration between eligible applicants and health care providers for the purpose of financing projects (1) to construct, improve, renovate, enlarge or equip classroom and clinical laboratory facilities to create multi-disciplinary instructional spaces; (2) expand the enrollment capacity of health profession certificate, associate, baccalaureate, masters and doctoral degree programs; and (3) establish faculty pipeline programs to address shortages in full-time and part-time faculty in the health sciences at institutions of higher education. All rules and regulations promulgated by the department shall comply with chapter 30A

(b) The public purpose of the HIRE Fund shall be to increase the diversity of the primary and behavioral healthcare workforce by providing mentorship, academic enrichment, leadership development and career exposure to disadvantaged and minority youth. In furtherance of this public purpose, and in a manner consistent with the recommendations of the council, the secretary of health and human services shall employ the HIRE Fund through grants and other disbursements and activities that are calculated to improve educational offerings available in low-income schools or schools districts. The grants and other disbursements and activities may support, without limitation: (i) the development and use of innovative curricula, courses and programs for new teachers and in-service teachers that provide appropriate and culturally

77 competent primary and behavioral healthcare content; (ii) develop a primary and behavioral
78 healthcare network to create, implement, share and make broadly and publicly available the best
79 practices and innovative programs relative to primary and behavioral healthcare and expand
80 student interest in primary care and behavioral healthcare studies; (iii) give priority to grants that
81 provide effective culturally competent course and curricula in low income schools or school
82 districts; and (iv) create summer programs for high school students, with appropriate stipends,
83 that would allow interested and motivated students to intern in private or nonprofit healthcare
84 and behavioral healthcare entities or in public programs that are in a position to further their
85 interest, knowledge and experience in the fields of primary and behavioral healthcare; provided,
86 that priority for the summer programs shall be given to students in groups that are presently
87 underrepresented in these fields including, but not limited to, persons of color, women, and those
88 whose native language is not English.

89 (c) Subject to appropriation from the HIRE Fund, the Massachusetts Academy of
90 Sciences shall partner with the University of Massachusetts medical school and behavioral health
91 providers in the regions being served to establish a program which shall consist of mobile health
92 labs. One mobile lab shall be assigned and designated for each of the following 5 regions:
93 metropolitan Boston, western Massachusetts, central Massachusetts, northeastern Massachusetts
94 and southeastern Massachusetts. The mission of the Massachusetts Academy of Sciences shall be
95 to encourage students to consider careers in primary and behavioral healthcare by participating in
96 enhanced primary and behavioral healthcare courses through the use of the mobile labs.

97 (d) The secretary of health and human services shall, in consultation with the council,
98 promulgate policies, rules and regulations for the administration and implementation of
99 subsections (a) and (b). The secretary shall file any policies, rules and regulations with the joint

100 committee on health care financing, the joint committee on public health, the joint committee on
101 mental health and substance abuse, the joint committee on education, the joint committee on
102 economic development and emerging technologies and the joint committee on labor and
103 workforce development for review and comment at least 30 days before the effective date of the
104 policies, rules or regulations.

105 (e) The secretary of health and human services may incur expenses and the comptroller
106 may certify amounts for payment in anticipation of expected receipts; provided, however, that no
107 expenditure shall be made from the fund which shall cause the fund to be deficient at the close of
108 a fiscal year. Revenues deposited in the fund that are unexpended at the end of a fiscal year shall
109 not revert to the general fund and shall be available for expenditure in the following fiscal year.

110 (f) The secretary of health and human services shall file a quarterly report with the house
111 and senate committees on ways and means, the joint committee on health care financing, the
112 joint committee on public health, the joint committee on education, the joint committee on
113 mental health and substance abuse, the joint committee on economic development and emerging
114 technologies and the joint committee on labor and workforce development on the following: (i) a
115 list of grant recipients, (ii) the associated grant amounts, (iii) the amounts of non-state funding
116 leveraged as a result of the grants, (iv) the purposes of the grants, (v) an annual statement of cash
117 inflows and outflows detailing the sources and uses of funds, (vi) a forecast of future payments
118 based on current binding obligations, and (vii) a detailed breakdown of the purposes and
119 amounts of administrative costs charged to the fund.

120 SECTION 3. Chapter 62C of the General Laws is hereby amended by inserting after
121 section 14 the following 2 sections:-

Section 14A. Every independent institution of higher education subject to the excise imposed pursuant to chapter 63E shall, on or before April fifteenth of each year make a return for the preceding taxable year giving such information as the commissioner deems necessary for the computation and collection of the excise imposed pursuant to said chapter.

Section 14B. Every private school subject to subject to the excise imposed pursuant to chapter 63F shall, on or before April fifteenth of each year make a return for the preceding taxable year giving such information as the commissioner deems necessary for the computation and collection of the excise imposed pursuant to said chapter.

SECTION 4. The General Laws are hereby amended by inserting after chapter 63D the following chapter:-

Chapter 63E. Independent Institution of Higher Education Endowment Excise Tax

Section 1. As used in this chapter the following words shall, unless the context clearly requires otherwise, have the following meanings:-

“Commissioner”, the commissioner of revenue.

“Endowment fund“, an established fund of cash, securities, or other assets to provide income for the maintenance of an independent institution of higher education and that are held by the institution, organizations formed and maintained exclusively to further one or more exempt purposes of the institution, and organizations that hold endowment funds for the benefit of the institution; provided, however, that “endowment fund” shall include assets classified as an endowment fund according to the current version of the Accounting Standards Codification of the Financial Accounting Standards Board.

"Financial Accounting Standards Board" means the board recognized by the American Institute of Certified Public Accountants and the United States Securities and Exchange Commission to have the authority to set and specify generally accepted accounting principles, or any successor or replacement entity.

"Independent institution of higher education", any institution maintained or conducted by any person, association, partnership, corporation, or trust, other than institutions within the public system of higher education as set forth in section 5 of chapter 15A, chartered, located, offering courses or otherwise doing business within the commonwealth and authorized to grant degrees pursuant to any general or special law.

Section 2. Notwithstanding any special or general law to the contrary, every independent institution of higher education in the commonwealth shall annually pay an excise equal to 2 per cent of the aggregate fair market value of the assets held in established endowment funds in the preceding taxable year.

Section 3. Every independent institution of higher education shall pay the excise to the commissioner at the time provided for filing the returns required under section 14A of chapter 62C.

Section 4. All sums received from the excise imposed on a independent institution of higher education pursuant to this chapter shall be credited to the Healthcare Industry Recruitment and Education Fund established pursuant to 2JJJJJ of chapter 29.

Section 5. The commissioner shall promulgate rules and regulations for assessing, reporting, collecting, remitting and enforcing the excise imposed pursuant to this chapter.

SECTION 5. The General Laws are hereby amended by inserting after chapter 63E,
inserted by section 4 of this act, the following chapter:-

Chapter 63F. Private School Endowment Excise Tax

Section 1. As used in this chapter the following words shall, unless the context clearly
requires otherwise, have the following meanings:-

“Commissioner”, the commissioner of revenue.

“Endowment fund“, an established fund of cash, securities, or other assets to provide
income for the maintenance of private elementary school or private secondary school and that are
held by the school, organizations formed and maintained exclusively to further one or more
exempt purposes of the school, and organizations that hold endowment funds for the benefit of
the school; provided, however, that “endowment fund” shall include assets classified as an
endowment fund according to the current version of the Accounting Standards Codification of
the Financial Accounting Standards Board.

"Financial Accounting Standards Board" means the board recognized by the American
Institute of Certified Public Accountants and the United States Securities and Exchange
Commission to have the authority to set and specify generally accepted accounting principles, or
any successor or replacement entity.

“Private elementary school”, a private school providing instruction to grades kindergarten
one through five, six, seven, or eight, and, may also include a middle school or other
intermediate level school providing instruction to grades five through eight or any combination
thereof.

“Private school”, any private elementary school or private secondary school maintained or conducted by any person, association, partnership, corporation, or trust and located in the Commonwealth pursuant to any general or special law.

“Private secondary school” shall a private school providing instruction to grades six through twelve, or any combination of those grades, except where a school has designated a middle or other intermediate level school providing instruction to grades five through eight, or any combination thereof, as an elementary school.

Section 2. Notwithstanding any special or general law to the contrary, every private school in the commonwealth shall annually pay an excise equal to 1 per cent of the aggregate fair market value of the assets held in established endowment funds in the preceding taxable year.

Section 3. Every private school shall pay the excise to the commissioner at the time provided for filing the returns required under section 14B of chapter 62C.

Section 4. All sums received from the excise imposed pursuant to this chapter shall be credited to the Healthcare Industry Recruitment and Education Fund established pursuant to 2JJJJJ of chapter 29.

Section 5. The commissioner shall promulgate rules and regulations for assessing, reporting, collecting, remitting and enforcing the excise imposed pursuant to this chapter.